

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
MATTHEW WADIAK,

Index #:

Plaintiff,

Purchased:

-against-

THE CITY OF NEW YORK, individually and on behalf of
NEW YORK CITY POLICE DEPARTMENT ("NYPD")
OFFICERS HARVEY SHAM, TIMOTHY SCHULTZ
PAUL RAO, YUN ZHANG and DOE(S) # 1-5 (the names of
such officer(s) being presently unknown) in their individual
capacity and in their capacity as NYPD employees,

SUMMONS

Defendants.

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TO THE ABOVE-NAMED DEFENDANT(S):

You are hereby summoned and required to serve upon plaintiff's attorney an Answer to the Complaint in this action within twenty (20) days after service of this Summons, exclusive of the day of service, or within thirty (30) days after service of this Summons if this Summons was not personally served upon you within the State of New York. In case of your failure to appear or answer in this action, judgment will be taken against you by default for the relief demanded in the Complaint.

Basis of venue: CPLR § 504(3) (the cause of action arose in New York County).

Dated: New York, New York
June 30, 2015

X 
PADILLA & ASSOCIATES, PLLC
By: Jeffrey W. Padilla, Esq.
845 Third Avenue - 6th Floor
New York, New York 10022
(888) 542-8411
jwp@padillalaw.com
Attorneys for Plaintiff

TO: The City of New York, individually and on behalf of New York City Police Department ("NYPD") Officers Harvey Sham, Timothy Schultz, Paul Rao, Yun Zhang and Doe(s) # 1-5 (the names of such officers being presently unknown) in their individual capacity and in their capacity as NYPD employees
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MATTHEW WADIAK,

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OFFICERS HARVEY SHAM, TIMOTHY SCHULTZ
PAUL RAO, YUN ZHANG and DOE(S) # 1-5 (the names of
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capacity and in their capacity as NYPD employees,

**VERIFIED
COMPLAINT**

Defendants.
-----X

Plaintiff MATTHEW WADIAK, by and through his attorneys, Padilla & Associates, PLLC, complaining of the defendants, respectfully alleges the following upon information and belief:

THE PARTIES

1. At all times hereinafter mentioned, plaintiff MATTHEW WADIAK (hereafter "plaintiff") was and still is an individual over the age of eighteen years and residing in the City, County and State of New York.

2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK (hereafter "defendant") was and still is a municipal corporation.

3. At all times hereinafter mentioned the New York City Police Department (hereafter "NYPD") was a municipal agency of defendant THE CITY OF NEW YORK.

4. At all times hereinafter mentioned NYPD Officer Harvey Sham was employed by the NYPD and was acting in furtherance of such employment.

5. At all times hereinafter mentioned NYPD Officer Timothy Schultz was employed by the NYPD and was acting in furtherance of such employment.

6. At all times hereinafter mentioned NYPD Officer Paul Rao was employed by the NYPD and was acting in furtherance of such employment.

7. At all times hereinafter mentioned NYPD Officer Yun Zhang was employed by the NYPD and was acting in furtherance of such employment.

8. At all times hereinafter mentioned Doe(s) #1-5 (the actual names of such officer(s) being presently unknown) were employed by the NYPD and was/were acting in furtherance of such employment.

9. Defendants' conduct as described herein occurred during routine police work and was pursuant to color of law.

BACKGROUND

10. On April 9 2014, plaintiff resided at and was the beneficial owner of a commercial establishment on the ground floor level of 187 Chrystie Street, in the City, County and State of New York (hereafter "the premises").

11. On April 9, 2014, plaintiff arrived at the premises and learned that something had happened.

12. Plaintiff subsequently learned that NYPD officers were at the premises.

13. Plaintiff asked the officers for information about what happened at the premises.

14. The NYPD officers, without any provocation by plaintiff or any regard for their duty to protect and serve plaintiff, reacted to plaintiff's inquiry in a vulgar, combative and unprofessional manner and refused to divulge information to plaintiff, the owner of the establishment the police were occupying.

15. Ultimately, plaintiff requested the names and badge numbers of the officers so that he could lodge a formal complaint against them.

16. In response to such a request, the defendant officers strictly followed common NYPD code, culture and policy by actively using threats and intimidation to harass plaintiff in order to prevent plaintiff from making a complaint that might result in disciplinary action against such officers.

17. The defendant officers also passively allowed their fellow officers to engage in such conduct without stopping or reporting it.

18. As a result of defendants' strict adherence to established NYPD code, culture and policy, defendants assaulted, battered, falsely arrested, falsely imprisoned and maliciously prosecuted plaintiff, and in the process violated plaintiff's civil rights and federal and state law.

19. Pursuant to General Municipal Law § 50-e, a Notice of Claim was served on defendant within ninety (90) days of the accident.

20. Pursuant to General Municipal Law § 50-h, defendant thereafter conducted an oral examination of plaintiff.

21. More than thirty (30) days have elapsed since the filing of the aforementioned Notice of Claim and adjustment or payment of the claim has been neglected or refused by defendant.

22. Pursuant to General Municipal Law § 50-i, this action is being commenced within one year and ninety days of when the cause(s) of action arose.

AS AND FOR A FIRST CAUSE OF ACTION

(Assault)

23. Plaintiff hereby reiterates and incorporates by reference all of the prior allegations as if fully set forth herein.

24. Defendants, without provocation or justification, shouted at plaintiff and used offensive and menacing physical gestures in order to intimidate plaintiff from making a complaint against the defendant officers.

25. Defendants' acts were designed to and did in fact intimidate plaintiff and cause him to fear that he would suffer imminent serious physical harm and injury at the hands and/or deadly weapons being carried by the defendant officers at the time of the conduct described herein.

26. Defendants' conduct constituted an assault on plaintiff.

27. Plaintiff suffered mental anguish and other damages as a result of the unprovoked assault.

28. As a result of such assault, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts and defendants are jointly and severally liable to plaintiff for such damages.

29. In addition, the individual defendant officers are further liable to plaintiff for punitive damages as a result of their outrageous conduct demonstrating an extreme and dangerous disregard for plaintiff's rights and their own critically important duties and responsibilities as armed police officers.

30. The limitations of liability set forth in Article 16 of the New York Civil Practice Law and Rules do not apply to this action.

AS AND FOR A SECOND CAUSE OF ACTION

(Excessive Force; Battery)

31. Plaintiff hereby reiterates and incorporates by reference all of the prior allegations as if fully set forth herein.

32. Defendants, without provocation, justification or plaintiff's consent, physically battered plaintiff by banging his head into a wall and attempting to otherwise injure plaintiff.

33. Defendants' conduct constituted an unreasonably excessive use of force and a battery against plaintiff.

34. Plaintiff suffered mental anguish and physical injuries to his head and body as a result of such excessive force and unprovoked battery.

35. As a result of such excessive force and unprovoked battery, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts and defendants are jointly and severally liable to plaintiff for such damages.

36. In addition, the individual defendant officers are further liable to plaintiff for punitive damages as a result of their outrageous conduct demonstrating an extreme and dangerous disregard for plaintiff's rights and their own critically important duties and responsibilities as armed police officers.

37. The limitations of liability set forth in Article 16 of the New York Civil Practice Law and Rules do not apply to this action.

AS AND FOR A THIRD CAUSE OF ACTION

(False Arrest And Imprisonment; Violation of Plaintiff's Civil Rights)

38. Plaintiff hereby reiterates and incorporates by reference all of the prior allegations as if fully set forth herein.

39. As a continuation of defendants' acts of intimidation and police misconduct, defendants intentionally and without probable cause falsely arrested and imprisoned plaintiff against his will.

40. Such false arrest and imprisonment were accomplished by handcuffing plaintiff, taking plaintiff into custody without plaintiff's consent first in a police vehicle, then in a police precinct and ultimately through the Central Booking process, all of which individually and collectively served to deprive plaintiff of his constitutional rights to liberty and the right to be free from unreasonable search and seizure.

41. Defendants' false arrest and imprisonment of plaintiff continued until plaintiff's release from custody on April 10, 2014.

42. Plaintiff was acutely aware of and did not at any time consent to such false arrest and imprisonment.

43. Defendants' false arrest and imprisonment of plaintiff was not legally privileged.

44. Defendants further violated plaintiff's civil liberties and constitutional rights by unreasonably denying and obstructing plaintiff's repeated requests for medical care and attention for the physical injuries he sustained by virtue of defendants' battery of plaintiff.

45. Defendants' conduct as described herein constitutes a violation of plaintiff's constitutional rights and civil liberties under both federal and state/local law.

46. Defendants' acts were consistent with and pursuant to defendants' long-standing policy, custom and history of excessive force and unconstitutionally lax arrest and detention policies.

47. Defendant CITY OF NEW YORK was deliberately indifferent to plaintiff's rights by failing to properly train and supervise the subject officers and by implementing and fostering a custom and policy of intimidation in order to discourage civilian complaints of police misconduct.

48. Defendants' acts demonstrated an intentional and complete disregard for plaintiff's and other civilians' rights.

49. As a result of defendants' false arrest and imprisonment of plaintiff and the violation of plaintiff's civil rights, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts and defendants are jointly and severally liable to plaintiff for such damages, including attorney's fees and statutory damages.

50. In addition, the individual defendant officers are further liable to plaintiff for punitive damages as a result of their outrageous conduct demonstrating an extreme and dangerous disregard for plaintiff's rights and their own critically important duties and responsibilities as armed police officers.

51. The limitations of liability set forth in Article 16 of the New York Civil Practice Law and Rules do not apply to this action.

AS AND FOR A FOURTH CAUSE OF ACTION

(Malicious Prosecution)

52. Plaintiff hereby reiterates and incorporates by reference all of the prior allegations as if fully set forth herein.

53. Despite actual knowledge of the wrongful and false arrest of plaintiff, defendants continued to prosecute plaintiff in an effort to intimidate plaintiff from filing complaints and/or claims against defendants.

54. Defendants knowingly issued false statements to investigators and prosecutors in an effort to further the malicious prosecution of plaintiff.

55. As a result of defendants' malicious prosecution of plaintiff, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts and defendants are jointly and severally liable to plaintiff for such damages.

56. In addition, the individual defendant officers are further liable to plaintiff for punitive damages as a result of their outrageous conduct demonstrating an extreme and dangerous disregard for plaintiff's rights and their own critically important duties and responsibilities as armed police officers.

57. The limitations of liability set forth in Article 16 of the New York Civil Practice Law and Rules do not apply to this action.

WHEREFORE, plaintiff demands judgment against defendant on each cause of action in an amount exceeding the jurisdictional limits of all lower courts, plus punitive damages against the individual officers, plus statutory damages, plus attorney's fees, interest, costs and disbursements incurred during the prosecution of this action, plus such other and further relief as this Court deems just and proper.

Dated: New York, New York
June 30, 2015

Yours, etc.

X 
PADILLA & ASSOCIATES, PLLC
By: Jeffrey W. Padilla, Esq.
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New York, New York 10022
(888) 542-8411
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Attorneys for Plaintiff

VERIFICATION

MATTHEW WADIAK hereby deposes and says:

I am the plaintiff in the within lawsuit. I have read the within Verified Complaint. The allegations contained therein are true to the best of my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

Dated: New York, New York
June 30, 2015

X 
MATTHEW WADIAK

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Filed by:
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